

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: May 26, 2026 at 1:30 pm

Rulings Posted: 5/22/26 at 3 pm

#	Case Name	Tentative
301	<i>CarParc USA LLC vs. Classic Showcase Inc.</i>	Before the Court at present is the Motion to Quash Service of Summons filed on 11/12/25 by Specially Appearing Defendant CMC Collection, LLC (CMC). The Motion is DENIED. Plaintiff CarParc USA LLC (CarParc) has met its initial burden to demonstrate facts justifying the exercise of personal jurisdiction here. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 393.) CarParc has shown that after CMC acquired the subject vehicle, CMC contacted and then hired CarPark to do work on the vehicle, and had the vehicle shipped to CarParc’s premises in California for that purpose. (Baars Decl. ¶ 6.) CMC then negotiated a

		sale of the vehicle to CarParc, while the vehicle was still in CarParc's possession in California. (Id. at ¶ 8.) This action arises directly from that sale. The circumstances here thus demonstrate that CMC purposefully availed itself of this forum, and materially differ from those in <i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254. The burden thus shifts to CMC to demonstrate that the exercise of jurisdiction would be unreasonable. It has failed to meet that burden here. The Motion to Quash is therefore DENIED. CMC's Evidentiary Objections are OVERRULED. Plaintiff is to give notice of this ruling.
302	<i>Klaas vs. Lyft, Inc.</i>	Plaintiff Adrienne Klaas' motion for trial preference is GRANTED. Plaintiff has a substantial interest in the action and has produced sufficient evidence to show she is over 70 years of age and her health is such that a preference is necessary to prevent prejudicing her interest in the litigation. (See Code of Civ. Proc. § 36, subd. (a)(1)-(2); Declaration of Adrienne Klaas ¶¶ 3-9, Exs. A-E.) The court advances trial from 1/25/27 to 9/14/26 at 9:30am in Dept. C24. Parties shall appear as to the status conference. Plaintiff shall give notice.
303	<i>City of Ontario vs. Inland Empire Utilities Agency</i>	Before the court is a Motion to Augment the Administrative Record (Motion) filed by respondent Inland Empire Utilities Agency (Respondent). The Motion is GRANTED.